

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Scott Carlton	Team: Squad #06	CCRB Case #: 201703315	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/06/2016 3:08 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/6/2018	Precinct: 28		
Date/Time CV Reported Thu, 04/27/2017 6:59 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 04/27/2017 6:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Green	10996	951788	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nicole Banwareesingh	04634	931536	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Green	Abuse: Police Officer Gregory Green threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Gregory Green	Abuse: Police Officer Gregory Green refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated

Case Summary

This case exceeded the ninety day benchmark because it was returned from mediation. The case was initially assigned to Investigator Diana Vale on May 1, 2017. On June 27, 2017, the case was reassigned to Investigator Robert Manukyan. Upon its return from the Mediation Unit on July 27, 2017, it was reassigned to Investigator Scott Carlton.

On April 27, 2017, § 87(2)(b) § 87(2)(b) filed this complaint on the Civilian Complaint Review Board website (CCRB).

At approximately 3:08 p.m. on July 6, 2016, § 87(2)(b) sat outside his single room occupancy apartment at § 87(2)(b) in Manhattan in front of personal items he had placed in the hallway. Property management personnel began to argue with § 87(2)(b) because they wanted the items removed from the hallway.

§ 87(2)(b)'s neighbor called 911. Police Officer Gregory Green and Police Officer Nicole Banwareesingh of the 28th Precinct responded. Police Officer Green told § 87(2)(b) that he could arrest him but did not explain why (**Allegation A**). § 87(2)(b) tried to explain to Police Officer Green that he had called 911 for assistance. § 87(2)(b) asked Police Officer Green for his name and shield number but he did not provide it (**Allegation B**). § 87(2)(b) moved his belongings out of the hallway and the officers left the scene. No summonses were issued.

There was no available video footage for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation on May 8, 2017 and the case was forwarded to the Mediation Unit on June 27, 2017. On July 26, 2017, Police Officer Green rejected mediation. The case was returned to Investigations on July 27, 2017.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On October 2, 2017, the New York City Comptroller's Office notified the CCRB that § 87(2)(b) had not filed a Notice of Claim (**Board Review 02**).

Civilian and Officer CCRB Histories

- § 87(2)(b) filed one prior CCRB complaint, § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
- Police Officer Green has been a member of service for five years and has no prior CCRB history.

Potential Issues

- This complaint was reported in regard to an incident that occurred 295 days earlier. As a result, certain forms of video, audio, and paper evidence such as a 911 CD and ARCS

were not available. Furthermore, the police officers, according to their sworn statements, remembered little to nothing of the incident at the time of their interviews.

- While building management personnel were present during the incident according to the statements provided by § 87(2)(b) and Police Officer Green, the investigation was unable to obtain statements from these witnesses. On September 21, 2017, a telephone call was placed to building management company § 87(2)(b). A male desk attendant refused to provide information about the availability of employees and how they could be contacted. On September 21, 2017, field work was conducted at § 87(2)(b). Employees § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) had been identified as at the scene of occurrence. However, only § 87(2)(b) was available to speak. § 87(2)(b) stated that he was second-in-command under § 87(2)(b) and could not provide any information regarding the incident until he was authorized by § 87(2)(b). § 87(2)(b) refused to confirm or deny whether he was present during the incident. He provided § 87(2)(b) contact number. On September 22, 2017, § 87(2)(b) was reached by telephone. § 87(2)(b) stated that she was not a witness to the incident and had to consult with her staff and look into § 87(2)(b) paper records regarding the incident to see who was present. On September 25, 2017, § 87(2)(b) was reached by phone again but stated she had not looked into the incident, but would do so the following day and call the CCRB afterward. § 87(2)(b) was unresponsive to all subsequent contact attempts. Between September 28, 2017 and October 6, 2017, three additional calls were placed to § 87(2)(b). In all cases, a receptionist stated that § 87(2)(b) was not available and a message was left. Between September 27, 2017 and October 12, 2017, two emails were sent to § 87(2)(b). Both emails were successfully delivered. Between October 4, 2017 and October 10, 2017, two letters were sent to § 87(2)(b). Neither letter was returned by the United States Postal Service (USPS). § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b) stated that his friends and neighbors § 87(2)(b) and § 87(2)(b) were present at the incident. § 87(2)(b) confirmed that § 87(2)(b) was present. Between August 1, 2017 and September 20, 2017, five voicemails were left for § 87(2)(b). None of them were returned. Two letters were sent to § 87(2)(b) on August 1, 2017 and August 21, 2017. The first letter was not returned by the USPS, while the second one was returned. § 87(2)(b) was called three times at a nonfunctional number between August 1, 2017 and August 23, 2017. On August 23, 2017, a LexisNexis search was conducted which provided an alternative phone number associated with § 87(2)(b) though it was denoted as possibly disconnected (**Board Review 04**). On August 23, 2017, this phone number was called and a busy signal was heard. On September 15, 2017, § 87(2)(b) left a voicemail with the CCRB in which he could be heard asking an unidentified individual for a phone number, which he then asked the investigator to call. On September 18, 2017, this telephone number was called. The respondent stated that he did not know an § 87(2)(b). On the same day, the phone number obtained from LexisNexis was again called and a busy signal was heard. Three letters were sent between August 1, 2017 and September 20, 2017 to § 87(2)(b) and were not returned by the USPS. The final letter explained that the CCRB received § 87(2)(b)'s voicemail but was not able to reach him at the number he had provided.

- After his interview at the CCRB, three voicemails were left for § 87(2)(b) between October 20, 2017 and October 26, 2017 to clarify details of his allegation concerning how Police Officer Green threatened to arrest him and how Police Officer Green responded when asked on what charges he would be arrested. § 87(2)(b) did not return these calls.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(b) alleged that § 87(2)(b) asked Police Officer Banwareesingh for her name and badge number and she did not provide it. Neither § 87(2)(b) nor § 87(2)(b) made this allegation. § 87(2)(b) furthermore stated that he did not hear Police Officer Banwareesingh's response to § 87(2)(b)'s request. § 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Gregory Green threatened to arrest

§ 87(2)(b)

On April 27, 2017, § 87(2)(b) filed this complaint on the CCRB website (**Board Review 05**). On May 8, 2017, § 87(2)(b) was interviewed at the CCRB (**Board Review 06**). § 87(2)(b) lived in a single room occupancy (SRO) building owned by the NYC Department of Housing Preservation and Development (HPD). Each shared apartment had a long hallway with bedrooms off of it and a communal bathroom and kitchen. § 87(2)(b) placed a shopping cart and laundry bag in the hallway outside his room while he did laundry. An argument with building personnel in regard to the placement of the items ensued. Neighbor § 87(2)(b) called 911 to report that the building management had assaulted § 87(2)(b). Building management personnel let the officers into the hallway unit. Police Officer Green spoke to § 87(2)(b) and told him that he would place him under arrest. § 87(2)(b) asked on what charge he would be arrested. Police Officer Green did not answer.

On May 8, 2017, § 87(2)(b) a friend of § 87(2)(b) provided an official statement at the CCRB (**Board Review 07**). On July 7, 2016, § 87(2)(b) and § 87(2)(b) who live in the same building as § 87(2)(b) visited him when building personnel arrived and the argument concerning § 87(2)(b)'s property in the hallway began. § 87(2)(b)'s shopping cart and laundry bag were positioned against a wall approximately two feet from § 87(2)(b) room, which was located in the rear of the apartment. The building management had previously told § 87(2)(b) to move the belongings multiple times. § 87(2)(b)'s property was not blocking a fire escape or creating a hazard.

When the police officers arrived, § 87(2)(b) moved inside the bathroom off the hallway so that she could hear Police Officer Green converse with § 87(2)(b). § 87(2)(b) told Police Officer Green that the issue was a civil matter and requested that he be allowed to handle it in court. Police Officer Green responded by saying either, “No, I’ll take you to jail,” or “I’ll arrest you.” § 87(2)(b) asked for what he would be arrested. Police Officer Green responded by instructing him to move the shopping cart and bag.

On August 8, 2017, § 87(2)(b) who lives in the room next to that of § 87(2)(b) provided a phone statement (**Board Review 08**). § 87(2)(b) stated that § 87(2)(b) called the police, but when they arrived, they wanted to arrest him. The officers made a motion to grab § 87(2)(b)'s arm and place it behind his back to handcuff him. § 87(2)(b) thought the officers might have handcuffed § 87(2)(b) momentarily, but was not certain.

On September 6, 2017, § 87(2)(b) provided a verified statement at the CCRB (**Board Review 09**). On July 6, 2017, § 87(2)(b) was in his room when he heard a commotion in the hallway. He opened the doorway to his room and observed police officers and building personnel standing and facing § 87(2)(b) who was seated in front of a collapsible shopping cart he had temporarily hung on the wall. § 87(2)(b) had not seen the cart in that location before and believed § 87(2)(b) was about to use it to go shopping. § 87(2)(b) said that building personnel were not allowed to touch his personal property in the hallway and that the items did not create a fire hazard. One officer said, "We should lock you up right now. Don't make us arrest you, § 87(2)(b) Calm down." § 87(2)(b) calmly asked on what grounds the officer could arrest him.

On September 15, 2017, Police Officer Green provided an official statement at the CCRB (**Board Review 10**). On July 6, 2016, Police Officer Green and Police Officer Banwareesingh responded to a call about a disorderly person at § 87(2)(b). Police Officer Green was met downstairs by at least three building administrators who told him that they had had problems with § 87(2)(b) before and provided a short debrief about the tenant as they escorted him upstairs to the scene of the dispute. Police Officer Green and Police Officer Banwareesingh were accompanied into the hallway by a landlord, a super, and a case manager. The management read building policy and explained that in order for tenants to stay in the building, they had to follow the policies. Police Officer Green did not remember his specific role in the dispute, who he spoke to, or how he handled the situation, but believed he mediated between § 87(2)(b) and building management and that the situation was resolved in a controlled and fairly calm manner.

Police Officer Green stated that housing code issues need to be resolved between tenants and building management. He stated that police officers do not enforce building rules unless a crime is being committed. Police Officer Green did not remember if, on July 7, 2016, he spoke with § 87(2)(b) about the possibility that he could be arrested. Police Officer Green deduced that he did not tell § 87(2)(b) that he could be arrested given that there was no charge for which he could be.

On September 12, 2017, Police Officer Banwareesingh provided an official statement at the CCRB (**Board Review 11**). Police Officer Banwareesingh had no recollection of the incident even after she was shown various photos of individuals and locations involved and given details of the incident. Her memo book indicated that she had been to § 87(2)(b) on the date in question.

Event § 87(2)(b) corresponds by time and location to this occurrence. It was created at 2:53 PM on July 6, 2016 and closed as "Non-crime corrected" at 3:19 PM (**Board Review 12**). A male caller stated that his landlord was going to throw away his neighbor's belongings.

Event § 87(2)(b) also corresponds by time and location to this occurrence. It was created at 2:55 PM on July 6, 2016 and closed as "Non-crime corrected" at 3:19 PM (**Board Review 13**). A

female complainant with the last name of § 87(2)(b) stated that a disorderly male was blocking a fire exit and would not move.

In the Consolidated Laws of the State of New York, Multiple Dwelling Law § 53(8c) states that “no person shall at any time place any encumbrance of any kind before or upon any fire-escape” and that a violation thereof is a misdemeanor **(Board Review 14)**. Furthermore, Patrol Guide Procedure 208-01 states that an arrest without a warrant may be made when a police officer has reasonable cause to believe the offence was committed in his presence **(Board Review 15)**. This includes “petty offenses” such as violations and traffic infractions.

§ 87(2)(g)

Furthermore, it is undisputed that § 87(2)(b) had personal items placed or hung in a communal hallway, and that building management found the placement of these items to be in violation of the housing code. In event § 87(2)(b) § 87(2)(b) stated that § 87(2)(b) blocked a fire escape and would not move. § 87(2)(b) stated that the building management had asked § 87(2)(b) to move the items on multiple prior occasions, which he did not do.

At the time of the incident, Police Officer Green and Police Officer Banwareesingh responded to two calls from the location, one from a tenant reporting that the building management was about to throw away § 87(2)(b)'s property, and the other from a representative of building management, who stated that a disorderly male was blocking the fire escape with his belongings. When they arrived, they found § 87(2)(b) at the end of a hallway guarding items he had placed there. § 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B—Abuse of Authority: Police Officer Gregory Green refused to provide his name and shield number to § 87(2)(b)

In § 87(2)(b)'s verified statement **(Board Review 06)**, he said that he asked Police Officer Green to provide his name, shield, and rank but Police Officer Green did not do so.

§ 87(2)(b) believed that § 87(2)(b) asked Police Officer Green for his shield number, but was not certain. **(Board Review 07)**. She did not hear Police Officer Green provide a shield number. § 87(2)(b) stated § 87(2)(b) asked for both officers' badge information multiple times but they did not provide it **(Board Review 09)**. § 87(2)(b) could not hear how either officer responded.

Police Officer Green did not recall if § 87(2)(b) asked for his name and shield or made any complaints that he could not obtain Police Officer Green's badge information, but stated that he would have shown it if asked (**Board Review 10**). Police Officer Green did not refuse to provide his name and shield to anybody at the scene of occurrence. Police Officer Banwareesingh was unable to comment on the allegation as she did not remember the incident (**Board Review 11**).

§ 87(2)(g)
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§ 87(2)(g)
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§ 87(2)(g)
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§ 87(2)(g)
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[Redacted] It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date